

**UNITED STATES DISTRICT COURT
for the
SOUTHERN DISTRICT OF NEW YORK**

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MARY BAYLES,

Plaintiff,

-against-

SULEJMAN FIDA, Individually, SULEJMAN
FIDA, in his official capacity, FIDA AND SON
CONSTRUCTION CORP, and AMIT FIDA,

Defendants.
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CIVIL ACTION NO.: 16-8339

HON. John G. Koeltl

AMENDED COMPLAINT

Plaintiff, **MARY BAYLES** (hereinafter “Plaintiff”), by and through her counsel, **THE DEARIE LAW FIRM, P.C.**, pursuant to Rule 15 of the FRCP, hereby files her First Amended Complaint. The Complaint shall be amended to add **AMIT FIDA** as a Defendant party in this action, and the Amended Complaint of the action will read as follows:

**UNITED STATES DISTRICT COURT
for the
SOUTHERN DISTRICT OF NEW YORK**

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MARY BAYLES,

Plaintiff,

CIVIL ACTION NO.: 16-8339

-against-

HON. John G. Koeltl

SULEJMAN FIDA, Individually, SULEJMAN
FIDA, in his official capacity, FIDA AND SON
CONSTRUCTION CORP, and AMIT FIDA,

AMENDED COMPLAINT

Defendants.

-----X

I. Parties in this complaint:

- a. Plaintiff: Mary Bayles
2811 Springfield Avenue
Potts Point, New South Wales
Australia 2011
- b. Defendant No. 1: Sulejman Fida, Individually
43 Amador Street
Richmond County, New York City
New York State 10303
- c. Defendant No. 2: Sulejman Fida, in his official capacity
43 Amador Street
Richmond County, New York City
New York State 10303
- d. Defendant No. 3: Fida and Son Construction Corp
70 Chapin Avenue
Richmond County, New York City
New York State 10304
- e. Defendant No. 4: Amit Fida
43 Amador Street
Richmond County, New York City
New York State 10303

II. Basis for Jurisdiction:

- a. Basis for federal court jurisdiction:
 - Federal Question
 - ✓ Diversity of Citizenship
- b. State of citizenship of each party:
 - Plaintiff state of citizenship: New South Wales, Australia
 - Defendant No. 1 state of citizenship: New York State
 - Defendant No. 2 state of citizenship: New York State
 - Defendant No. 3 state of citizenship: New York State
 - Defendant No. 4 state of citizenship: New York State

III. Statement of Claim:

- a. Where did the events giving rise to your claim occur?

East 27th Street and Madison Avenue, County, City and State of New York.
- b. What date and approximate time did the events giving rise to your claim occur?

May 24, 2016 at approximately 4:35pm.

- c. Facts:

On Tuesday, May 24, 2016, at approximately 4:35pm, Plaintiff MARY BAYLES was a pedestrian, crossing East 27th Street, in the crosswalk, on the west side of Madison Avenue, New York, New York, from the southwest to northwest corner.

At the same time and place, Defendant No. 1, SULEJMAN FIDA and/or Defendant No. 4, AMIT FIDA, was operating a motor vehicle, owned by Defendant No. 3, FIDA AND SON CONSTRUCTION CORP, traveling northbound on Madison Avenue and making a left turn onto East 27th Street, New York, New York.

As Plaintiff MARY BAYLES was crossing East 27th Street, in the crosswalk, the motor vehicle operated by Defendant No. 1, SULEIMAN FIDA and/or Defendant No. 4, AMIT FIDA, negligently failed to yield to Plaintiff pedestrian in said crosswalk, and caused Defendant's vehicle to strike Plaintiff MARY BAYLES.

After striking and driving over Plaintiff, Defendant No. 1, SULEIMAN FIDA and/or Defendant No. 4, AMIT FIDA, left the scene of the accident before police arrived. The hit and run was witnessed by at least two pedestrians, named in the police report.

As a direct and proximate result of Defendants' negligence, Plaintiff MARY BAYLES suffered painful and permanent bodily injuries, which forced each Plaintiff to undergo prolonged medical treatment, incur medical expenses, loss of income and significant pain and suffering.

IV. Injuries

As a result of the incident, Plaintiff suffered the following injuries.

Plaintiff suffered the following injuries to her Right foot and leg: (1) Displaced comminuted distal fibular diaphyseal fracture with apex dorsal; (2) Displaced intra-articular fracture of the lateral aspect of the distal tibia; (3) Displaced intra-articular fracture of the medial malleolus; (4) Calcaneal avulsion fracture; (5) Nondisplaced navicular fracture; (6) Nondisplaced intra-articular fracture at the second proximal phalangeal base; (7) Marked soft tissue swelling; (8) Innumerable moderate-sized radio dense foreign bodies present throughout the soft tissues of the Right foot; (9) Subcutaneous emphysema; (10) Widening of the posterior tibiotalar joint; (11) Large laceration.

Plaintiff suffered the following injuries to her Left foot and leg: (1) Comminuted transverse fracture at the medial malleolus; (2) Oblique fracture of the lateral malleolus; (3) Disruption of ankle mortise with surrounding soft tissue swelling; (4) Early filling of the right venous system in the calf and right popliteal and superficial femoral vein, likely related to inflammation/increase vascularity at the right lower extremity.

Plaintiff has undergone nine (9) surgeries since the date of accident.

V. Relief

Plaintiff demands judgment against Defendant No. 1, SULEIMAN FIDA, Individually, Defendant No. 2, SULEIMAN FIDA, in his official capacity, Defendant No. 3, FIDA AND SON CONSTRUCTION CORP, and Defendant No. 4, AMIT FIDA, for damages, interest, attorney's fees and costs of litigation, as well as such other relief as the Court may deem, in excess of SEVENTY FIVE THOUSAND DOLLARS (\$75,000.00).

I declare under penalty of perjury that the foregoing is true and correct.

Signed this 20th day of December, 2018.



THE DEARIE LAW FIRM, P.C

John P. Dearie, Esq. (JD1983)

Attorneys for Plaintiff

MARY BAYLES

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